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LAW 101: The Nigerian Legal System - Sources, Courts and Legal Reasoning

How law is made, applied and argued in Nigeria, explained for first-year law students

FACULTY PRIMER

Faculty Primer

Faculty of Law
Public Law | 100L

Written for students, by students.

Practical notes, worked examples, practice questions and a revision plan.

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Why this pack exists

LAW 101 is where law students learn that law is a system of sources and reasoning, not a list of rules. This pack covers the sources of Nigerian law, the court hierarchy, the doctrine of precedent, statutory interpretation and the IRAC method, with worked examples you can imitate in tutorials.

This is a student-written study companion, not a reproduced lecture handout or a leaked examination paper. Use it to organise the topics you are taught, practise the kind of thinking your course rewards, and walk into class with better questions.

What you will be able to do

- Identify and rank the sources of Nigerian law, including the Constitution, legislation, case law, custom and received English law.
- Explain the jurisdiction and hierarchy of Nigerian courts from the Supreme Court downwards.
- Apply the doctrine of stare decisis and distinguish ratio decidendi from obiter dictum.
- Structure a legal answer using issue, rule, application and conclusion.

How to use this pack

1. Skim the whole pack once in 20 minutes so you know what is inside.
2. Work through one section at a time with your lecture note and recommended text beside you.
3. Attempt the practice questions before reading the answers. Mark what you missed.
4. Use the final checklist to plan your revision week, one tick per study session.

> **Free to download, always**
> This pack is free. There is no fee, no subscription and no payment step before download, and the full PDF is not watermarked or locked. Share the link with a coursemate instead of forwarding the file.

> **Confirm your official course outline**
> Course codes, credit units and outlines can differ by department and session. Treat this pack as supplementary support and confirm the current outline with your lecturer, course rep or departmental handbook before an assessment.

Sources of Nigerian law

A source of law is an authority from which legal rules derive their validity. Hierarchy matters: a rule from a lower source cannot override a higher one.

- The Constitution: supreme and directly enforceable; inconsistent legislation is void to the extent of inconsistency.
- Legislation: Acts of the National Assembly, state laws, subsidiary legislation and bye-laws.
- Judicial precedent: decisions of superior courts create binding rules within their jurisdiction.

- Customary law: recognised as a source where it is not repugnant to natural justice, equity and good conscience, and is not incompatible with existing law.
- Received English law: common law, doctrines of equity and statutes of general application in force in England before 1 January 1900, received subject to local circumstances.
- Islamic law: applicable in the northern states and to personal matters where the parties submit to it.

> **Exam habit**
> When asked about sources, rank them. A Constitution-first answer shows you understand supremacy; a flat list does not.

Courts and jurisdiction

Jurisdiction is the power of a court to hear a matter. A court without jurisdiction cannot validly decide anything, however correct its reasoning.

- Supreme Court: apex court, mainly appeals; its decisions bind all lower courts.
- Court of Appeal: appeals from the Federal High Court, state High Courts, and election and other specialised tribunals.
- Federal High Court: federal matters including revenue, customs, banking, company law and certain fundamental rights applications.
- State High Courts: unlimited jurisdiction over civil and criminal matters within the state, subject to the Constitution.
- Magistrate and district courts: limited civil and criminal jurisdiction.
- Customary and Sharia courts of appeal: appeals in customary and Islamic personal law matters.

Precedent and legal reasoning

Stare decisis means standing by decided matters. A court must follow the ratio of a superior court in the same hierarchy, but only the ratio.

The ratio decidendi is the legal principle necessary to the decision. Obiter dicta are passing remarks that do not bind, though they may persuade.

Distinguishing a case is the advocate's main tool: show that the material facts differ so the earlier rule does not apply. Overruling is different - a higher court rejects the earlier rule itself.

- Ratio binds; obiter persuades.
- A court is bound by decisions of courts above it, not by courts of coordinate or lower rank.
- Persuasive precedent includes decisions from other common-law jurisdictions and the Privy Council.
- Statutory interpretation: literal rule, golden rule and mischief rule; also purposive interpretation.
- IRAC structure: Issue, Rule, Application, Conclusion. Never write the conclusion before the application.

Sources of Nigerian law

Nigerian law comes from several sources that operate together: the Constitution, legislation, English common law and doctrines of equity received at a cut-off date, customary law, Islamic law in the northern states, and judicial precedent. Each has its own scope, and conflicts between them are resolved by hierarchy and by validity tests.

The Constitution is supreme; any law inconsistent with it is void to the extent of the inconsistency. Legislation follows a defined process - bill, readings, committee, assent - and must be published to take effect. English common law and equity apply as received, but only where no Nigerian legislation covers the point.

Customary law applies where it is the appropriate law for the parties and is not repugnant to natural justice, equity and good conscience, nor incompatible with existing legislation. That repugnancy doctrine is itself controversial: it measures African custom against a foreign standard, and its application has produced both protection and distortion.

Court structure and jurisdiction

The superior courts are the Supreme Court, the Court of Appeal, the Federal High Court, the State High Courts, the National Industrial Court and the Sharia Courts of Appeal and Customary Courts of Appeal in the states that have them. Below them are magistrates' courts, district and area courts, and customary courts. Jurisdiction is the legal power to hear a matter, and it depends on subject matter, geography, parties and the value of the claim.

Appeals generally run from trial courts to the Court of Appeal and then to the Supreme Court, with limits on which matters may go further. Time limits for appeals are strict; missing them can end a case regardless of its merits.

The separation of powers matters practically. Courts interpret; the legislature enacts; the executive implements. Unlawful executive action can be challenged in court by judicial review, though the remedy is only as effective as compliance with it.

> **Jurisdiction before merits**
> A court without jurisdiction cannot decide anything else, however good the arguments. Always ask first: is this the right court?

Precedent and the legal method

The doctrine of stare decisis requires courts to follow decisions of higher courts on the same point. A decision contains a ratio decidendi - the principle necessary to the outcome - and obiter dicta, remarks not necessary and therefore not binding. Distinguishing a case means showing that its material facts differ, so its ratio does not apply.

The legal method taught in this course is a structure: state the issue, state the rule and its source, apply the rule to the facts, and conclude. IRAC works because it forces you to separate what the law is from what you think about the facts.

Reading a case means identifying parties, facts, issues, holding, reasoning and any dissenting opinion. Citation conventions matter: a case reference identifies the parties, the volume, the report series and the page. Sloppy citation undermines otherwise sound work.

WORKED EXAMPLES

Do it once, slowly

These are not model answers to copy. They show the reasoning a strong student would use, step by step, so you can repeat the process on a question you have not seen.

1. Applying IRAC to a short problem

A landlord locks a tenant out without notice after two months of unpaid rent. Work through the issue.

1. Issue: was the landlord entitled to take possession without a court order?
2. Rule: recovery of possession of premises is regulated; self-help eviction is unlawful, and the appropriate procedure is an action in court.
3. Application: locking out the tenant is self-help, regardless of the arrears.
4. Further issue: the unpaid rent gives a right to claim arrears and to terminate in accordance with the tenancy, not to remove the tenant by force.
5. Conclusion: the eviction is unlawful and the tenant may seek re-entry and damages.
6. Note the sources you would cite and the court with jurisdiction.

> **What to carry forward**
> State the rule and its source before applying it. Conclusion follows from the rule, not from sympathy.

2. Distinguishing a precedent

A precedent holds that a contract signed under duress is voidable. Your case involves pressure from a third party.

1. State the precedent's ratio: pressure by a contracting party vitiates consent.
2. Identify the material fact in your case: the pressure came from outside the contract.
3. Argue that the ratio does not cover third-party pressure.
4. Cite authority on third-party duress if available.
5. Acknowledge the counter-argument that the test is overborne will.
6. Conclude on whether the precedent binds.

> **What to carry forward**
> Distinguishing works on material facts. Name the fact that matters and explain why.

EXAM TECHNIQUE

Questions with model answers

Written in the shape your course is usually examined, with the marking logic spelled out. Attempt each one under time before you read the outline.

Q1. Discuss the sources of Nigerian law and how conflicts between them are resolved.

20 marks

1. List the sources and their constitutional or statutory basis.
2. Explain supremacy of the Constitution.
3. Explain the repugnancy test and its criticisms.
4. Give an example of a hierarchy conflict and its resolution.
5. Conclude on the plural character of the system.

Q2. Explain ratio decidendi and obiter dictum, and why the distinction matters.

10 marks

1. Define both.
2. Explain that only the ratio binds.
3. Show how distinguishing operates on the ratio.
4. Note the difficulty of identifying the ratio in a multi-judge decision.

REFERENCE

Glossary

Use these definitions in your own sentences; a copied definition rarely earns full marks.

Ratio decidendi. The legal principle necessary to a court's decision, which binds lower courts.

Obiter dictum. A remark not necessary to the decision, and therefore not binding.

Stare decisis. The doctrine that courts follow higher courts' decisions on the same point.

Jurisdiction. A court's legal power to hear a particular matter.

Judicial review. Court scrutiny of the legality of administrative action.

Repugnancy doctrine. The test that customary law must not offend natural justice, equity and good conscience.

Common law. Judge-made law received from English practice and applied where not superseded.

Equity. A body of principles supplementing common law to prevent injustice.

Precedent. A prior decision used as authority for deciding a later similar case.

IRAC. Issue, Rule, Application, Conclusion - a structure for legal problem answers.

Customary law. Law derived from the accepted customs of a community.

Separation of powers. The division of governmental functions among legislature, executive and judiciary.

Your four-week plan

Week 1 - Sources

Hierarchy.

- List sources and rank them.
- Read the supremacy provision.
- Explain the repugnancy test and one criticism.

Week 2 - Courts

Jurisdiction.

- Draw the court hierarchy.
- Match five disputes to the correct court.
- Note appeal time limits.

Week 3 - Cases

Reading judgments.

- Brief one reported case.
- Extract the ratio.
- Identify one obiter remark.

Week 4 - Method

IRAC.

- Answer two problem questions.
- Cite sources properly.
- Check that application follows the rule.

Where to read more

Entry-level texts you can find in the university library or a departmental reading list. Confirm editions with your lecturer.

- The Constitution of the Federal Republic of Nigeria (as amended).
- An introduction to Nigerian legal system covering sources and court structure.
- A casebook of Nigerian authorities on precedent and jurisdiction.

PRACTICE, NOT PREDICTION

Check your understanding

These questions are written for this pack to test the ideas above. They are not past examination questions and do not predict what your lecturer will set. Answer first, then compare.

1. Why is the Constitution described as supreme?

Answer: Because section 1 of the 1999 Constitution provides that its provisions prevail over any other law, and inconsistent laws are void to the extent of the inconsistency.

2. Distinguish ratio decidendi from obiter dictum.

Answer: The ratio is the legal reasoning essential to the decision and binds lower courts. Obiter are incidental remarks that do not bind but may be persuasive.

3. State two requirements for a custom to be enforced as law.

Answer: It must be established by evidence, not be repugnant to natural justice, equity and good conscience, and not be incompatible with existing law. Any two of these.

4. Which court binds a State High Court in Nigeria?

Answer: The Court of Appeal and the Supreme Court, and the Supreme Court binds all courts in Nigeria.

5. Apply IRAC: a client was dismissed without a hearing.

Answer: Issue: whether dismissal without a hearing breaches fair hearing. Rule: section 36 of the Constitution guarantees fair hearing. Application: no opportunity was given to respond. Conclusion: the dismissal is likely void for breach of fair hearing.

Your 7-step action plan

Tick each step only when you have done it. A tick you cannot defend is worse than an empty box.

- [ ] Draw the Nigerian court hierarchy from memory with one line of jurisdiction for each.
- [ ] List the sources of Nigerian law in order of supremacy.
- [ ] Read one Supreme Court case and write out its ratio in two sentences.
- [ ] Find and label an obiter remark in a case summary.
- [ ] Write one IRAC answer of 300 words on a fair-hearing scenario.
- [ ] Learn the three rules of statutory interpretation with one example each.
- [ ] Meet a senior colleague and ask which LAW 101 topics appear most in assessments.

Keep going

One pack will not carry a semester. Pair this with your lecture notes, tutorials, and the past questions your department actually releases. If a topic still feels unclear, take a specific question to your lecturer or course rep - "I do not understand the difference between X and Y" gets a better answer than "I do not understand this course".

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YOUR WORKSPACE

Notes, questions and things to ask

Use this page in class or during revision. Write questions you could not answer instead of copying slides.

Three ideas I can now explain without notes:

A question I still cannot answer:

For my lecturer or course rep:

Next revision action and date: